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EXTRAORDINARY

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PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

CENTRAL PROVINCE PROVINCIAL COUNCIL

By - Laws

MADADUMBARA PRADESHIYA SABHA

I, Sarath Ekanayake, as the Minister in Charge of the subject of Local Government of the Central Provincial Council, do hereby notify according to the powers vested in me under Sub-section (1) of Section 123 of the Pradeshiya Sabha Act, No. 156 of 1987, to be read with Sub-section (1)(a) of Section 2 of the Provincial Council Act No. 12 of 1989 (Consequential Provisions) has approved the following by-laws framed by the Madadumbara Pradeshiya Sabha, according to powers vested under Sub-section ix (0) of Section (126) of the said Act, to be read with Sub-section (1) of the Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987 and the said by-law shall be effective within the Pradeshiya Sabha Authority area of Madadumbara from the date of publication of this notification in the Government Gazette.

SARATH EKANAYAKE,

The Chief Minister of the Central Province
and the Minister in charge of the subject of
Local Government.

Office of the Chief Minister of the Central Province,
Kandy,
16th December 2014.

MEDADUMBARA PRADESHIYA SABHA

BY-LAW RELATING OFFENSIVE TRADES, DANGEROUS TRADES AND OFFENSIVE AND DANGEROUS TRADES OR BUSINESS

1. These by-laws are enforced for the purpose of making provision of regulating, supervision, controlling offensive trades, dangerous trades and offensive and dangerous trades and for levying fees from such business carried out within the Pradeshiya Sabha authority area of Medadumbara.
2. No person within the Pradeshiya Sabha Authority limits shall conduct or maintain an offensive trade, dangerous trade or offensive and dangerous trade, shown in the schedules herein, unless such person is in possession of a license issued by the Chairman.



3. Every license issued shall be valid until the 31st of December of the year for which it is issued unless such license is cancelled earlier.
4. No person shall have the right to obtain a license for carrying out an offensive trade or dangerous trade or offensive and dangerous trade, unless such premise and if and building thereon to be used for the purpose, do not conform to following conditions.
 - (a) Premises shall be in good repaired condition and shall have proper ventilation and lighting and every room when opened, the area of windows fixed shall be less than 1/15 of the floor area of the room.
 - (b) Height of every part of the walls of every room shall not be less than 2.14 metres and be built with bricks, rubble stones, kabok bricks, or with cement blocks and inner walls shall be cement plantered, at least to a height of 02 meters from the floor, and the remaining portions of the wall shall be lime plastered and colour washed.
 - (c) End of every roof shall be 02 metres in height from the floor level.
 - (d) Roof shall be covered with some permanent roof material.
 - (e) All wood work shall be oil painted or be lime washed
 - (f) The entire floor shall be paved with cement.
 - (g) Premises shall be provided with adequate drainage facilities
 - (h) The premises shall have sanitary dust bins and be provided with adequate toilet facilities.
5. Every license holder shall take action to store, all the materials required for maintaining the business, in such a manner so as to prevent emanation of any bad smell or causing any type of inconvenience.
6. A license holder, when conveying offensive or smelling materials through a public place or on a high road shall pack such materials in covered and impermeable containers or bags so that no hindrance is caused.
7. Every license holder shall take action to prevent offendable noise steams, fumes or gas emanating while in the process of production and release to the atmosphere in such manner, without causing any harmful effects or else cause the exit of such substance by firing or through solid faying equipment.
8. Every license holder shall build adequate drains in the premises where his business if carried out and maintain them properly by daily washing and cleaning.them properly.
9. Every license holder shall build the floor of the premises where the business is to be carried out with some impermeable material and shall maintain such premises in good repair condition and shall clean daily.
10. Every license holder, during the period when his business is being carried out shall see that the premises are colour washed annually.
11. Every license holder shall keep all wares and articles including equipment and utensil used in the process of business activities clean and tidy.
12. Every license holder shall, daily dispose all waste materials getting collected in the premises where the business is carried out such as sweepings, garbage, any remnants and by products, if they are not utilized immediately in the business activities by storing them in covered containers and as directed by the Pradeshiya Sabha.

13. Every license holder shall clean and empty water tanks used for washing and soaking leather or any other materials, preventing emanation of any bad odour or smell as and when required.
14. No license holder shall allow to flow or cause to flow into any river, water way, canal well, lake or any drain, polluted, filthy and smelling water or any other liquid fluid or shall not pollute a river, canal waterway, sluice, well, lake, tank or any water filled open area by washing any offensive substance or by any other means.
15. It shall be lawful, for the Chairman or for any other officer of the Council who is generally or especially authorized by the Chairman for such purpose, to enter into any premises where an offensive trade or dangerous trade or offensive and dangerous trade is carried out and the license holder or the person who is in charge of such place shall assist them to make such inspections.
16. Whenever at any inspection, if it is detected that a licensed place or premises is not being maintained according to the provisions stipulated in these by laws, the Chairman has the power to inform the license holder in writing to take necessary action to regularize such premises conforming to provisions of these by laws within a specified period of time. The license holder shall take necessary action accordingly and if he fails to do so the Chairman has the power to cancel the license at such situation.
17. It is the duty of the Chairman, whenever any application forwarded by any person to obtain a license to conduct any trade or business under these regulations, to issue such license within 30 days of the receipt of such application, if such place conform to provisions of these by laws and if such place does not conform to provisions of these by laws and if such application is to be rejected the applicant shall be informed of the reasons for doing so.
18. Every license holder shall make arrangements to display a list of employees, in Sinhala and Tamil languages, who are employed in the trade or business for which a license issued, together with their names and addresses, at a conspicuous place of such premises.
19. Every notice issued under these by laws shall be delivered to the owner or to the person in charge of the premises, depending on such circumstance. If such person is not present, such notice shall be affixed at a conspicuous place of such business premises. The name of the owner of the place, or the names of the person using such place need not be mentioned in such notice.
20. In any occasion when a number of businesses or industries, requiring a license under Section 164 of the Pradeshiya Sabha Act , carried out at one place, the license fees for each industry or business shall be levied separately for such each industry or business.
21. Contravening any of the provisions of these by laws is an offence and when convicted in a court of law having jurisdiction, the maximum fine imposable, and when such contravention is committed continuously and when convicted or in the case of continuous contravention, after delivering a written notice by the Chairman or by an other authorized officer, drawing attention for such contravention, the maximum additional fine imposable for each day of continuing such contravention shall respectively be as defined under sub Section (2) of Section 122 of Pradeshiya Sabha Act No. 15. of 1987.
22. Unless the context otherwise requires in these by laws:-

"License holder" means a person to whom a license is issued under these by laws to carry out any business.

"Person" means and includes incorporated or non co-operated board of individuals too.

"Person in charge" means and includes watcher, or guardian, custodian, guardian of property manager or other person to whom, the administration or management or organization of any business is vested or behalf of certain person.

" Pradeshiya Sabha" means Pradeshiya Sabha of Medadumbara. "Chairman" means the Chairman of Medadumbara Pradeshiya Sabha.

"Pradeshiya Sabha Area" means Pradeshiya Sabha authority area of Medadumbara. "An authorized officer of the Pradeshiya Sabha" means officer or officers who are authorized by the Chairman to enforce these by laws.

23. In the event of any inconsistency between Sinhala, Tamil and English texts of these bylaws the Sinhala text shall prevail.

1ST SCHEDULE

Offensive Trades

1. Manufacturing manure or chemical manner or storing.
2. Leather taming.
3. Sale of leather.
4. Animal husbandry (for meat, milk or eggs)
5. Keeping a studio.
6. Keeping Veterinary hospital.
7. Storing perishable food items and food stuff for sale.
8. Storing dry fish, salted fish and "Jadi" exceeding a quantity of 150 Kilograms.
9. Production of coconut shell charcoal, wood charcoal and storing charcoal.
10. Caring tobacco and keeping a store
11. Manufacture of animal food and keeping a store.
12. Manufacture of poonac and storing over 200 kilograms.
13. Manufacturing soap
14. Grinding animal bones and keeping them.
15. Storing new and scrap iron.
16. Keeping a store for metal scrap articles.
17. Manufacture of household furniture and storing.
18. Manufacture of rattan articles.
19. Keeping a carpentry workshop
20. Manufacture of fruit drinks and cyrup.
21. Manufacture of all kind of sweet meats.
22. Soaking coconut husks (or decomposing)
23. Manufacture of brushes (except tooth brush)
24. Manufacture of tooth brushes.
25. Collection of toddy
26. Manufacture of vinegar and storing.
27. Keeping a mechanically or manually operated timber depot.
28. Storing over 100 litres of painting ink, varnish and distemper paints.
29. Manufacture of soda.
30. Production of leather goods.
31. Canning fruits, fish and other food items.
32. Keeping a grinding mill for grinding chilies, coffee, cereals, and spices or flour milling.
33. Manufacture of candles.
34. Manufacture of camphor.
35. Production of writing ink, printing ink and stencil ink.
36. Manufacture of blue for washing clothes.
37. Production of sealing wax.
38. Manufacture of cosmetics or keeping a store.
39. Production of school chalk.
40. Storing a quantity of over 50 tyres and tubes.
41. Rebuilding tyres.

42. Keeping a depot for vulcanizing tyres and tubes.
43. Storing over 1000 kilograms of cement.
44. Manufacture of cement articles and asbestos cement articles.
45. Manufacture of plastic goods.
46. Weaving textiles by machines.
47. Sale of bags which contained manure lime powder and other substances after cleaning.
48. Producing of cement bricks by machines.
49. Storing over 250 kilograms of cereals.

2ND SCHEDULE

Dangerous Trades.

1. Storing quantities of flour, salt or sugar exceeding 750 kilograms for whole sale.
2. Manufacture of ready made garments
3. Keeping a printing press
4. Keeping a poultry farm or a poultry yard having over 100 birds.
5. Keeping a hut or a shed for over 10 goats and pigs.
6. Storing bricks and tiles.
7. Keeping a firewood depot
8. Blasting or digging granite stones by manual or mechanical means.
9. Manufacture of soft drinks or storing over 100 soft drink bottles.
10. Production of ice cream.
11. Production of coconut oil and storing in quantity exceeding 100 litres.
12. Manufacturing box of matches and storing in quantity exceeding 100 dozens.
13. Production of articles from coir or from any other kind of fibre or storing such items.
14. Storing used garments.
15. Making gold ornaments and repairing them
16. Sawing timber mechanically
17. Keeping a factory using tools and equipments
18. Storing empty bottles and gunnies.
19. Keeping work shop for repairing bicycles and motor cycles.
20. Storing used papers and news papers
21. Keeping a picture framing centre
22. Production and storing fire works and crackers.
23. Storing coconut oil and other vegetable oil quantity exceeding 50 litres.
24. Storing frozen fish and meat
25. Storing timber.

3RD SCHEDULE

Offensive and Dangerous Trades.

1. Curing cinnamon, cloves, cardamom or other kinds of fibre by using chemical substance.
2. Dry cleaning or dyeing.
3. Textile printing or dyeing
4. Keeping an electro plating centre
5. Burning and treating lime stones and dolomite or storing ash line.
6. Keeping a battery charging or repairing centre
7. Keeping a motor car repairing garage
8. Maintaining a motor car service station.
9. Maintaining a lathe workshop
10. Keeping a tinkering shed

11. Keeping gas cylinder store
12. Production or dispensing ayurvedic and indigenous drugs
13. Maintaining a glass or sheet glass store
14. Maintaining a plastic or fibre products factory
15. Storing tea dust in quantity exceeding 150 kilograms
16. Keeping welding work shop.
17. Maintaining a lathe machine work shop
18. Maintaining a filling station for petrol, diesel oil or any kind of mineral oil
19. Manufacturing and storing agro-chemicals
20. Repairing or servicing air conditioners, fridges and deep freezers.
21. Maintaining an electrical work shop or electrical equipment production and repairing work shop
22. Keeping a milk chilling centre

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BY - LAWS

Madadumbara Pradeshiya Sabha

I, Sarath Ekanayake, as the Minister in Charge of the subject of Local Government of the Central Provincial Council, do hereby notify according to the powers vested in me under Sub-Section (1) of Section 123 of the Pradeshiya Sabha Act, No.156 of 1987, to be read with Sub-Section (1) (a) of Section 2 of the provincial council Act No.12 of 1989 (Consequential Provisions) has approved the following by - laws framed by the Madadumbara Pradeshiya Sabha, according to powers vested under (sub-Section vii (e) of Section (126) of the said Act, to be read with Sub- Section (1) of section 122 of the Pradeshiya Sabha Act No. 15 of 1987 and the said by -Laws shall be effective within the Pradeshiya Sabha authority area of Madadumbara from the date of publication of this notification in the Government Gazette.

SARATH EKANAYAKE,
The Chief Minister of the Central Province
and the Minister in charge of the subject of
Local Government.

Office of the Chief Minister of the Central Province,
Kandy.
16th December 2014.

MADADUMBARA PRADESHIYA SABHA

BY-LAWS RELATING TO HIGH ROADS AND BY ROADS

1. This By Law is framed for the purpose of Protecting, Improving, Controlling, Administering and Regulating the Roads and by Roads within the administrative limits of Medadumbara Pradeshiya Sabha.
2. This By Laws shall be cited as the Roads and by Roads By Laws of the Medadumbara. Pradeshiya Sabha.
- 3 For the purpose of providing an adequate and good quality road system within the Pradeshiya Sabha authority area.

All roads belong to the Medadumbara Pradeshiya Sabha shall be categorized under following Grades hereafter;

- a. 1st Grade Roads - 20 feet or more in width.
- b. 2nd Grade Roads - over 10 feet and less than 20 feet in width.
- c. 3rd Grade Roads - less than 10 feet in width.

4. It is lawful for the Chairman of the Medadumbara Pradeshiya Sabha, hereinafter referred to as Chairman, to put up notice boards at any road or any place within its authority area limiting, prohibiting and imposing limits on weight and speed of vehicles and include words “By Order of Chairman, Medadumbara Pradeshiya Sabha” on such notice boards as shown hereof;

Maximum Weight 05 Tons, By Order - Chairman, Medadumbara Pradeshiya Sabha
Maximum Speed 20 km P.H. - By Order - Chairman, Medadumbara Pradeshiya Sabha
No Entry - By Order - Chairman, Medadumbara Pradeshiya Sabha
Prohibited for Heavy Vehicles - By Order - Chairman, Medadumbara Pradeshiya Sabha
Entry of Carts Prohibited - By Order - Chairman, Medadumbara Pradeshiya Sabha
Vehicle Driving One Way Only - By Order - Chairman, Medadumbara Pradeshiya Sabha
Bridge Culvert Damaged - Maximum Tare 02 Ton - By Order - Chairman, Medadumbara
Pradeshiya Sabha
No Parking - By Order - Chairman, Medadumbara Pradeshiya Sabha

5. No obstruction shall be placed in any drain or culvert of roads owned by the Medadumbara Pradeshiya Sabha shown in the Schedule herein blocking the passage of water and shall not build approach roads without approval.
6. No any material or any articles shall be heaped up and kept on these roads obstructing the movement of traffic and pedestrians.
7. No waste or rubbish material or waste water shall be disposed on to any roads shown in the Schedule herein and no action whatsoever shall be done causing damage to road surface and the drains.
8. No festival shall be held and no decoration shall be carried out without approval, causing any obstruction.
9. The Chairman has the power to stop, change, and suspend traffic movement on any road after giving prior notice for reasons arising out of any special circumstances.
10. It is lawful for the Chairman or any officer authorized by him in writing to enforce the provisions of these By Laws.
11. Contravening any of the provisions of these by -laws is an offence and when convicted in a court of law having jurisdiction the maximum fine and punishment imposable and when such contravention is committed continuously and when convicted or in the case of continuous contravention after delivering a written notice by the Chairman or by an officer authorized by him drawing attention for such contravention, the maximum additional fine imposable for each day of continuing such contravention shall respectively be as defined under Sub-section (02) of Section 122 of the Pradeshiya Sabha Act No. 15 of 1987. These By Laws shall effect from the date of publication in the Gazette of the Democratic Socialist Republic of Sri Lanka, after approval of the Minister.
12. For the purpose of these by laws, unless the context otherwise requires;
“Minister” means the Minister in charge of the subject of Local Government in the Central Province.
“Council” means the Medadumbara Pradeshiya Sabha.
“Pradeshiya Sabha Authority Area” means the authority area of Medadumbara Pradeshiya Sabha.
“Authorized Officer” means the officer authorized by the Chairman of Medadumbara Pradeshiya Sabha.

In the event of any inconsistency between the Sinhala, Tamil and English text of these by laws the Sinhala text shall prevail.

BY-LAWS

Madadumbara Pradeshiya Sabha

I, Sarath Ekanayake, as the Minister in Charge of the subject of Local Government of the Central Provincial Council, do hereby notify according to the powers vested in me under Sub-Section (1) of Section 123 of the Pradeshiya Sabha Act No.156 of 1987, to be read with sub-Section (1) (a) of section 2 of the provincial council Act No.12 of 1989 (Consequential Provisions) has approved the following by - laws framed by the Madadumbara Pradeshiya Sabha, according to powers vested under (v) of Section (126) of the said Act, to be read with Sub- Section (1) of section 122 of the Pradeshiya Sabha Act No .15 of 1987 and the said by -Laws shall be effective within the Pradeshiya Sabha authority area of Madadumbara from the date of publication of this notification in the Government Gazette.

SARATH EKANAYAKE,
The Chief Minister of the Central Province
and the Minister in charge of the subject of
Local Government.

Office of the Chief Minister of the Central Province,
Kandy.
16th December 2014.

MEDADUMBARA PRADESHIYA SABHA

BY-LAWS RELATING TO OBTAINING INFORMATION FOR LEVYING TAXES

1. This by-law is cited as the by-law relating to obtaining information for levying taxes from all business places and industries maintained in the Medadumbara Pradeshiya Sabha authority areas.
2. This by-law is framed for the purpose of making provisions for obtaining periodical returns necessary for collection of information required for preparing statements of accounts for levying taxes from all business places and industries maintained within the Medadumbara Pradeshiya Sabha authority areas.
3. All business and industrial institutions and organizations shall maintain correct and genuine statements, and reports of accounts according to recognized norms of accounting systems.
4. It is the duty of every person, subject to business tax, to render all information and copies of such information in respect of all financial transactions and accounts relating to such information when required by the Chairman or by an officer authorized on that behalf.
5. All business information and periodical returns of financial accounts required from time to time by the Chairman or by an officer authorized by him, shall be prepared based on recognized norms of accounting systems.
6. All the financial reports and statements of accounts to be forwarded under by-law No.05 shall be audited and be certified by a recognized auditor.
7. Any person whoever, who receives a notice forwarded by the secretary or by an authorized officer of the Meda dumbara Pradeshiya Sabha shall forwarded to the Secretary the information required by such notice within 14 days of the receipt of the notice.
8. Furnishing false information or failure to forward such Information is an offence ;
9. When it is required to check the information furnished in the periodical returns called for under by-law No.05, it is lawful for the Chairman or the person authorized by him to visit such place of business or the premises of the industry and check the authenticity of such information from books and documents therein.

10. Contravention of any one or several or all these by-laws shall be an offence, and when convicted in a court of law having jurisdiction, the fine imposable and when such contravention is committed continuously and when convicted, or in the case of a continuous contravention, after delivering a written notice by the Chairman or by an officer authorized by him, drawing attention for such contravention, the additional maximum fine imposable for each day of continuing such contravention shall be as defined under sub-Section (2) of Section (122) of the Pradeshiya Sabha Act No. 15 of 1987.
11. Unless the context otherwise requires in these by laws -
"Council" means the Medadumbara Pradeshiya Sabha.
"Chairman" mean the Chairman of the Medadumbara Pradeshiya Sabha.
"Authorized Officer" means the officer authorized by the Chairman to inspect and supervise all activities of any business place.

In the event of any inconsistency in the Sinhala, Tamil and English texts of these by-laws the Sinhala text shall prevail.

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